

Scorza: “AI trained with personal data, here are the responsibilities of website managers”

To remove personal data contained in their web pages from the fishing nets of the algorithm lords is a right or a true legal obligation? This question is not secondary, as it pertains to the impact of artificial intelligence on our society and the rules of personal data protection.

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After OpenAI, now Google Bard also allows the publisher-manager of a web page to remove their “own” content from the nets used for trawling for algorithmic training purposes, and it allows this autonomously from indexing services.

A publisher can, therefore, decide to remove their pages from the training of algorithms without necessarily having to give up the traffic guaranteed by the indexing of their content by Google’s search engine.

****Copyright and algorithm training: the choice of the New York Times****

From the perspective of copyright law, choosing whether or not to utilize such solutions and, therefore, allowing or denying the training of an algorithm based on content that has been created or, in any case, published, represents a right that the individual publisher can freely choose to exercise or not. For example, the New York Times recently chose to utilize this option – a decision that has sparked discussion and continues to do so – after seeing its attempts to reach a financial agreement with OpenAI fail.

We will now see if it decides to do the same with Google or if other publishers will choose to follow suit.

****Personal data at the mercy of algorithms: the role of website managers****

However, there is another issue on which it may be worth initiating reflection and opening a debate. The publisher or, in any case, the manager of the web page – but the same applies, of course, to the manager of a social network – in addition to being holders or, at least, licensees of the copyright on the content they publish, are normally the holders of the processing of the personal data present in such content.

More specifically, they are the holders of the processing that publishes and disseminates certain personal data for this or that purpose based on this or that legal basis.

This may involve purposes of transparency in compliance with a legal obligation, purposes of information or reporting based on legitimate interest, or data published at the request of users.

****Right or legal obligation?****

And so the question that seems useful to ask is the following: since it is now possible – and it depends exclusively on the publisher or the manager of the individual web page – to remove all personal data contained in their web page, does the latter, from the different perspective of the regulation on personal data protection, simply have the right or does it have a true legal obligation to remove the personal data contained in their web pages from the fishing nets of the algorithm lords?

If one considers that not utilizing the tools made available to companies that train their algorithms essentially means leaving the personal data of which they are holders at the mercy of these companies, there may be valid arguments supporting the thesis that there exists a true legal obligation for the manager of a web page to do everything possible, given the state of technology, to remove the data they publish from the appetites of algorithms.

****Rules and principles to which the data controller must adhere****

Failing to do so could be considered incompatible with a long list of rules and principles to which every data controller must adhere: from the principle of privacy by design to that of minimization and the adoption of necessary security measures.

Is it not the responsibility of the data controller to protect the personal data they process at least against easily foreseeable and equally easily avoidable forms of appropriation by third parties?

Can the data controller passively accept the risk that personal data subject to their processing is swallowed up by third parties for purposes other than those of their processing?

The principle of “integrity and confidentiality” referred to in Article 5, paragraph 1, letter f) of the GDPR requires the data controller to “ensure an adequate level of security for personal data, including

protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures.”

Is a web page manager compliant with this principle if, while being able to remove – at least in some cases easily – the personal data potentially published from collection by third parties for the purpose of training artificial intelligence algorithms, does not take steps to do so?

****Security of processing****

A similar question, probably, arises in relation to the provision of Article 32 of the GDPR, which pertains, indeed, to the security of processing.

This latter, in fact, imposes on the data controller the obligation to implement security measures at a level that is "adequate to the risk," taking into account not only the nature, object, context, and purposes of the processing but also "the state of the art and the costs of implementation." The data controller is thus required to adopt the measures that, at the historical moment in which the processing takes place, represent the best possible solution to ensure the security of the processing. This seems to be the case regarding the measures we are discussing.

The issue of accountability

Furthermore, in a logic of accountability, the data controller who fails to address the issue we are dealing with, or who, even when addressing it, considers it unnecessary to adopt the security measures in question, can be deemed "accountable" and, in this sense, exempt from any disputes regarding violations of the Regulation and/or compensation actions by the data subjects. Up to this point, of course, we are discussing the existence or non-existence of certain protection obligations on the part of publishers and managers of web pages and social network platforms, while the main issue remains to understand whether, under what title, and possibly under what conditions, regardless of what the publisher or the web page manager does or does not do, the entity responsible for training the algorithms can indiscriminately collect others' personal data.

But this is another matter.

Conclusions

As is another matter the need – in any case – to recognize individuals' right to withdraw their personal data from any form of processing instrumental to the training of algorithms, as there seems to be no good reason to impose on the individual to "endure" indefinitely and in derogation of the rights recognized to them by the current legislation, a processing like the one being discussed. As always, when it comes to managing new challenges such as those related to the impact of artificial intelligence on our society and the rules of personal data protection, doubt is a necessary companion, and dialogue and confrontation are valuable allies. Only those who convince themselves that their answer is the only correct one beyond any reasonable doubt are mistaken.